

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
MICHAEL JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JASON
STAHL, Shield No. 23405, SERGEANT PHILIP CHAU,
SERGEANT SANNASARDO, LIEUTENANT RICHARD
KLOS, and POLICE OFFICERS JOHN DOES #1-10
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

Defendants.
----- X

SUMMONS

Index No.:

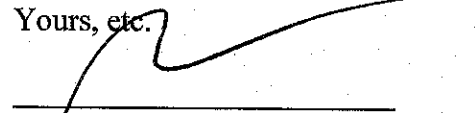
The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 11, 2015

Yours, etc. 

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer JASON STAHL, Shield No. 23405, Transit District 3, Mezzanine 145th
Street and St. Nicholas Ave. Subway Station, New York, NY 10019
SERGEANT PHILIP CHAU, Transit District 3, Mezzanine 145th Street and St. Nicholas
Ave. Subway Station, New York, NY 10019
SERGEANT SANASSARDO, Transit District 3, Mezzanine 145th Street and St.
Nicholas Ave. Subway Station, New York, NY 10019
LIEUTENANT RICHARD KLOS, Transit District 3, Mezzanine 145th Street and St.
Nicholas Ave. Subway Station, New York, NY 10019

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, MICHAEL JOHNSON, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about November 13, 2013 at approximately 2:00 a.m., plaintiff Michael Johnson, was falsely arrested, falsely imprisoned, assaulted, battered, and subjected to excessive force by the individually named defendant New York City police officers inside of the subway station located at Lenox Avenue and West 135th Street, New York, New York. Furthermore, the individually named defendant police officers maliciously prosecuted plaintiff, denied plaintiff his right to a fair trial, and negligently inflicted emotional distress upon plaintiff. Plaintiff was deprived of his constitutional and common law rights when the individually named defendant police officers falsely arrested, imprisoned, assaulted, battered, maliciously prosecuted, denied a right to a fair trial, negligently inflicted emotional distress, and subjected plaintiff to the use of excessive force in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff MICHAEL JOHNSON is a resident of Bronx County, State of New York.

3. Police Officer JASON STAHL, Shield No. 23405, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer JASON STAHL, Shield No. 23405, is and was at all times relevant herein, assigned to Transit District 3.

5. Police Officer JASON STAHL, Shield No. 23405, is being sued in his individual and official capacities.

6. SERGEANT PHILIP CHAU, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT PHILIP CHAU, is and was at all times relevant herein, assigned to Transit District 3.

8. SERGEANT PHILIP CHAU, is being sued in his individual and official capacities.

9. SERGEANT SANNSARDO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT SANNSARDO, is and was at all times relevant herein, assigned to Transit District 3.

11. SERGEANT SANNSARDO, is being sued in his individual and official capacities.

12. LIEUTENANT RICHARD KLOS is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. LIEUTENANT RICHARD KLOS, is and was at all times relevant herein, assigned to Transit District 3.

14. LIEUTENANT RICHARD KLOS is being sued in his individual and official capacities.

15. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

22. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

23. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

24. THE CITY OF NEW YORK held a 50(H) hearing examination of the Plaintiff on May 7, 2014.

STATEMENT OF FACTS

25. On November 13, 2013, at some time after 1:00 a.m., plaintiff Michael Johnson lawfully boarded a Number 3 subway train at 125th Street and Lenox Avenue in the county of New York, New York.

26. Plaintiff lawfully entered a subway car, and sat down in a vacant seat, without incident.

27. Shortly thereafter, an individual whom plaintiff had never met and who was much larger in size than plaintiff suddenly approached the vicinity of where plaintiff was seated and aggressively exclaimed to plaintiff, "move your shit!"

28. Although plaintiff was in no way preventing the individual from sitting in a vacant seat on the train, plaintiff did not want to engage or argue with the larger and visibly aggressive man; therefore plaintiff adjusted himself and his clothing to ensure that no part of plaintiff's body or plaintiff's belongings were in any way touching the vacant seat next to him.

29. Nevertheless, as the subway train pulled into the station located at 135th Street and Lenox Avenue, New York, New York, the man, who appeared to be emotionally disturbed or mentally unstable, began to physically attack plaintiff without any provocation.

30. When the train pulled into the station located at 135th Street and Lenox Avenue, the doors to the train opened, the man continued to physically attack and assault plaintiff, the man threw plaintiff to the floor inside of the train, the individually named defendant police officers boarded the train car whereat plaintiff was being attacked and observed the individual attacking the plaintiff.

31. Upon boarding the subway car and observing the individual physically attacking plaintiff, the individually named police officer defendants apprehended and arrested the individual who they observed attacking plaintiff.

32. At no time did plaintiff verbally or physically assault or batter the apprehended individual that attacked him.

33. The individually named police officer defendants observed the individual physically assault and attack plaintiff, did not observe plaintiff physically or verbally assault or attack the individual in any way, did not observe any bodily injuries to the individual who attacked plaintiff, and possessed no objective evidence to support any allegation that plaintiff assaulted and/or attacked the other individual.

34. The individually named police officer defendants proceeded to unlawfully handcuff and falsely arrest plaintiff without probable cause or legal justification.

35. Moreover, the individually named police officer defendants used excessive force against plaintiff while they were unlawfully handcuffing him and falsely arresting him.

36. Specifically, without any provocation or legal justification the defendant police officers physically and aggressively grabbed plaintiff by the left shoulder and threw him face-first to the ground causing injury to plaintiff's left shoulder, face, nose, and teeth.

37. Notably, at no point in time did plaintiff resist arrest in any way.

38. At no point in time did plaintiff cause public alarm by screaming obscenities on the train and on the subway platform.

39. The defendant police officers knew that plaintiff was the victim of an unlawful physical assault by the individual on the train and had no objective basis to believe plaintiff assaulted the individual in any way.

40. Plaintiff cooperated with the defendant police officers and complied with their orders. Moreover, none of the defendant police officers were injured by plaintiff during the course of plaintiff's arrest.

41. Thereafter, the defendant police officers unlawfully seized plaintiff and forcefully transported plaintiff to Transit District 3 and placed him into a holding cell.

42. While at the precinct, the defendant police officers falsely communicated to the New York District Attorney's Office that plaintiff committed a crime, and falsely alleged that plaintiff caused injury to a police officer while he was allegedly resisting arrest.

43. The individually named police officer defendants' arrest paperwork related to plaintiff's arrest that was forwarded to the New York County District Attorney's Office intentionally did not reference the fact that the other individual that attacked plaintiff was arrested for attacking plaintiff, or that they observed the other individual assaulting plaintiff.

44. Plaintiff was then transported to Manhattan Central Booking.

45. On November 14, 2013, after approximately 24 hours in custody, plaintiff was arraigned, and charged with assault in the third degree, attempted assault in the third degree, harassment in the second degree, and resisting arrest.

46. At arraignment plaintiff was released on his own recognizance.

47. Plaintiff was required to make approximately two court appearances in criminal court before all charges against him were dismissed and terminated in his favor on February 18, 2014.

48. After plaintiff was released from custody, on November 15, 2013 he went to Jacobi Hospital to receive treatment for his physical injuries caused by the defendant police officers.

49. Plaintiff was diagnosed with several severe physical injuries, including but not limited to fractured teeth, a fractured nose, shoulder injuries, and injury to his fingers.

50. At no point during their encounter with plaintiff did the defendant police officers have probable cause or legal justification to arrest plaintiff for any crime.

51. At no point in time during their encounter with plaintiff did the defendant police officers have legal justification to assault, batter or to use excessive force against plaintiff.

52. Some of the defendant police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the false imprisonment, false arrest, assault, battery and use of excessive force against plaintiff.

53. The false arrest, false imprisonment, assault and battery and used of excessive force against plaintiff by the individually named defendant police officers caused him to sustain severe physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, falsely arrested and imprisoned, maliciously prosecuted, and denied a right to a fair trial, without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and in violation of plaintiff's right to due process under the Fifth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Malicious Prosecution

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

62. Defendants commenced and continued a criminal proceeding against plaintiff related to the underlying arrest of plaintiff on November 13, 2013.

63. There was actual malice and an absence of probable cause by defendants for the criminal proceedings against plaintiff and for each of the charges for which he was prosecuted.

64. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

65. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

70. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

71. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

72. In withholding/creating false evidence against plaintiff Michel Johnson and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

73. As a result of the foregoing, plaintiff Michael Johnson, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The use of excessive force by defendants in grabbing him from behind and slamming into the ground, causing plaintiff severe physical injury, was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

78. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Assault

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Battery

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

85. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

86. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

NINTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Michael Johnson. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

91. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Negligence

93. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. Defendants owed a duty of care to plaintiff.

95. To the extent defendants claim that the physical injuries caused to plaintiff's person by the defendants were caused by unintentional actions by defendants, then defendants breached that duty of care by physically injuring plaintiff after they unlawfully seized plaintiff and falsely arrested him.

96. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages and injuries hereinbefore alleged.

97. All of the foregoing occurred without any fault or provocation by plaintiff.

98. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Failure to Intervene

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other defendant police officers.

101. Defendants failed to intervene to prevent the unlawful conduct described herein.

102. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

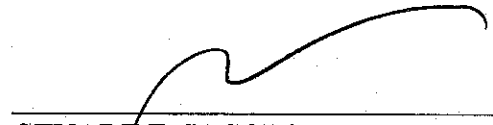
JURY DEMAND

105. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Michael Johnson demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 11, 2015

By: 

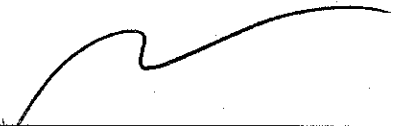
STUART E. JACOBS
DAVID M. HAZAN
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Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 11, 2015



STUART E. JACOBS